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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**NOTICE OF LODGING SUPPLEMENTAL
AUTHORITY (CODE CIV. PROC., §§ 425.16,
425.17)**

(Cal. Rules of Court, rule 3.1306(c); lodge only; not an amendment
to any pleading)

**Cross-noticed for pending defense hearings (this case, Dept.
301):**

#	Motion	Date / dept / judge
(1)	MFL / leave (SAC)	Apr. 30, 2026
(2)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m. ; Dept. 301; Hon. Christine Van Aken
(3)	Strike (Code Civ. Proc., § 436)	May 22, 2026 ; Dept. 301; Hon. Christine Van Aken
(4)	Demurrer	Hrng. date [TBD] (reserved)

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

NOTICE OF LODGING

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Plaintiff Franciscus Dylan Rosario hereby **lodges supplemental authority** for the Court's consideration at **each** of the pending defense-motion hearings cross-listed on the caption page: MFL/SAC (Apr. 30, 2026); special motion to strike (May 12, 2026); Code Civ. Proc., § 436 motion to strike (May 22, 2026); and demurrer (date reserved). The authorities below bear on whether Code Civ. Proc., § 425.17(c) and related threshold doctrines are **common spine** issues across those motions.

I. Authorities Lodged

1. *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12 (framework for Code Civ. Proc., § 425.17(c); categorical bar when elements satisfied).
2. *JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984 (Code Civ. Proc., § 425.17(c) applied to commercial actor making representations about its own services).
3. *Stewart v. Rolling Stone LLC* (2010) 181 Cal.App.4th 664 (Code Civ. Proc., § 425.17(c) applied to statements integrated with commercial output).
4. *Flatley v. Mauro* (2006) 39 Cal.4th 299 (illegality as a matter of law removes assertedly protected conduct from Code Civ. Proc., § 425.16 gateway).
5. *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696 (reaffirming *Flatley* on uncontroverted record).
6. *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309 (threshold construction of Code Civ. Proc., § 425.17 exemptions before Code Civ. Proc., § 425.16).
7. *Action Apartment Ass'n v. City of Santa Monica* (2007) 41 Cal.4th 1232 (Code Civ. Proc., § 47(b) coextensive with Code Civ. Proc., § 425.16(e) for certain deceit predicates).
8. *Rusheen v. Cohen* (2006) 37 Cal.4th 1048 (non-communicative conduct outside Code Civ. Proc., § 425.16(e)).
9. *City of Cotati v. Cashman* (2002) 29 Cal.4th 69 (demurrer pleading standards; rhetorical merits labels).
10. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057; *Baral v. Schnitt* (2016) 1 Cal.5th 376 (anti-

1 SLAPP step separation).

2 11. *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809; *Wilson v. 21st Century Ins. Co.*
3 (2007) 42 Cal.4th 713 (insurer investigation duties).

4 12. *Zhang v. Superior Court* (2013) 57 Cal.4th 364 (UCL predicate and Insurance Code stan-
5 dards).

6 13. Plaintiff’s concurrently lodged Omnibus Supplemental Memorandum of Black-Letter Con-
7 tradictions (systematizing defense positions against cited authorities).

8 **II. Common Defense Spine Across All Four Motions**

9 The operative complaint and incorporated papers explain why Code Civ. Proc., § 425.17(c) and
10 privilege sequencing are not one-off labels tied only to the anti-SLAPP calendar. The same
11 commercial-insurer and panel-counsel posture appears in demurrer Ground B framing, in the Code
12 Civ. Proc., § 436 motion papers that invoke “absolute” litigation-privilege themes, and in the
13 MFL/SAC sequencing where defendants invoke Code Civ. Proc., § 425.16 policy rhetoric. Plain-
14 tiff does not amend any pleading here; this lodging supplies supplemental authority and does not
15 enlarge the merits briefing record. Physical copies of all lodged materials accompany this Notice
16 pursuant to Cal. Rules of Court, rule 3.1306(c).

17 **III. Why Code Civ. Proc., § 425.17(c) Reaches All Four Motions**

18 **Threshold first.** Under *Club Members*, Code Civ. Proc., § 425.17 issues are structurally prior
19 where raised. **Code Civ. Proc., § 47(b) coextensive strand.** Under *Action Apartment*, certain
20 deceit channels align with the Code Civ. Proc., § 425.16(e) inquiry. **Code Civ. Proc., § 436 frame.**
21 A Code Civ. Proc., § 436 motion to strike is not a free-standing substitute for an anti-SLAPP
22 special motion; where defendants import anti-SLAPP-style “everything is petitioning” arguments
23 into a Code Civ. Proc., § 436 attack, *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680,
24 1682–83 (backdoor demurrer misuse) supplies a strike-specific guardrail Plaintiff lodges for the
25 May 22, 2026 hearing. **Simmons class cases.** Amendment futility rhetoric tied to Code Civ. Proc.,
26 § 425.16 (often associated with *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068) does not
27 erase threshold Code Civ. Proc., § 425.17 sequencing where the Court is asked to rule on leave and
28 related papers on the Apr. 30, 2026 calendar; Plaintiff addresses that interaction through *JKC3H8*

1 v. *Colton* (2013) 221 Cal.App.4th 468 and *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 871.

2 **IV. Code Civ. Proc., § 425.17(e) — No Interlocutory Stay or Appeal**

3 Code Civ. Proc., § 425.17(e) provides that an order granting or denying a motion under Code Civ.
4 Proc., § 425.17 is not subject to an interlocutory appeal, stay, or writ to the extent it is based on a
5 Code Civ. Proc., § 425.17 exemption. Plaintiff incorporates by reference his lodged Interlocutory
6 Appeal Bar brief on Code Civ. Proc., § 904.1(a)(13) and related writ constraints.

7 **V. Code Civ. Proc., § 425.17(d) — No Carve-Out Available on This Record**

8 Code Civ. Proc., § 425.17(d) limits certain “public interest” carve-out arguments for particular
9 categories of defendants. On the facts Plaintiff has pleaded about commercial insurance claim
10 handling and paid defense counsel, defendants cannot reposition this dispute as a “media / internet
11 / large nonprofit” Code Civ. Proc., § 425.17(d) case to sidestep Code Civ. Proc., § 425.17(c). The
12 lodged authorities in Section I therefore remain relevant at each hearing where defendants invoke
13 broad Code Civ. Proc., § 425.16 immunity tropes.

14 **VI. Procedural Posture**

15 This lodging does not amend or expand the briefing record. Physical copies of all lodged mate-
16 rials are provided herewith pursuant to Cal. Rules of Court, rule 3.1306(c). An accompanying
17 RJN seeks judicial notice of the operative statute and regulation texts, the full text of which is
18 reproduced therein.

19 **VII. Relief Requested**

20 Plaintiff requests that the Court (a) accept this Notice for the register, (b) consider the lodged
21 authorities at **each** hearing listed on the caption page, and (c) take judicial notice as requested in
22 the accompanying RJN.

Dated: April 30, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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